

24STCV14629 24STCV14629

County: los-angeles

Division: Civil Law and Motion

Department: 729

Hearing date: 2026-09-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C729%2C09%2F30%2F2026

Source SHA-256: 9f89bbdbe5e28436a8c93f2eb6baff361d9f796e35f364e72329fa688fad8ad4

Case Number: 24STCV14629 Hearing Date: September 30, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

CLAUDIA

ESTEBANA DIAZ GONZALEZ, et al.

vs.

CRYSTAL PLUS

LLC.

Case No.: 24STCV14629

Hearing

Date: September 30, 2023

Petitioner Claudia Maria Sanchez's petition to approve minor's compromise for Johnny Matthew Hernandez is granted. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Claudia Maria Sanchez's petition to approve minor's

compromise for Jordan Pedro Sanchez is granted.

The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Claudia Maria Sanchez's petition to approve minor's compromise for Damian Carlos Godoy is granted.

The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Maritza Margarita Macias' petition to approve minor's compromise for Jonathan Daniel Macias is granted. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Maritza Margarita Macias' petition to approve minor's compromise for Hailey Izabella Villagran is granted. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Claudia Estebana Diaz Gonzalez's petition to approve minor's compromise for Ashley Nicole Diaz Chavez is granted. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitioner Sandra Maribel Guerra's petition to approve minor's compromise for Leonardo David Hernandez is granted. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitions for minors David Leonardo Hernandez-Guerra, Nahomy Alexandra Guerra Lara, Ashley Dayana Villamil Guerra, Marie Cattaleya Diaz Gonzalez, Oliver Alexander Ceron Diaz, Franklin Noe Ceron Diaz, Amy Jayleen Villagran-Macias, Julian Emmanuel Villagran, and Janelle Bethanie Godoy are denied, without prejudice, on the basis that the minors' names are not correctly spelled on their respective petitions and orders.

Petitioner Claudia Maria Sanchez ("C. Sanchez"), on behalf of Minor Claimants Johnny Matthew Hernandez ("Johnny"), Jordan Pedro Sanchez ("Jordan"), and Damian Carlos Godoy ("Damian"), petitions the Court to approve minors'

compromises in the settlement of the instant action.

Petitioner Maritza Margarita Macias ("M. Macias"), on behalf of Minor Claimants Jonathan Daniel Macias ("Jonathan Daniel") and Hailey Izabella Villagran ("Hailey"), petitions the Court to approve minors' compromises in the settlement of the instant action.

Petitioner Sandra Maribel Guerra ("S. Guerra"), on behalf of Minor Claimant Leonardo David Hernandez ("Leonardo"), petitions the Court to approve the minor's compromise in the settlement of the instant action.

Petitioner Claudia Estebana Diaz Gonzalez ("C. Gonzalez"), on behalf of Minor Claimant Ashley Nicole Diaz Chavez ("Ashley"), petitions the Court to approve the minor's compromise in the settlement of the instant action.

The Court notes the petitions and orders for the following minors must be denied, with prejudice, on the basis that the minors' names are incorrectly spelled on the documents filed with the Court: David Leonardo Hernandez-Guerra, Nahomy Alexandra Guerra Lara, Ashley Dayana Villamil Guerra, Marie Cattaleya Diaz Gonzalez, Oliver Alexander Ceron Diaz, Franklin Noe Ceron Diaz, Amy Jayleen Villagran-Macias, Julian Emmanuel Villagran, and Janelle Bethanie Godoy.[1]

I.

Background

C. Gonzalez, individually and as guardian ad litem for Ashley, Oliver Alexander Ceron Diaz, Franklin Noe Ceron Diaz, and Marie Cattaleya Diaz Gonzalez (collectively, "Diaz Claimants"); M. Macias, individually and as guardian ad litem for Jonathan Daniel, Hailey, Amy Jayleen Villagran-Macias, and Julian Emmanuel Villagran (collectively, "Macias Claimants"); C. Sanchez, individually and as guardian ad litem for Johnny, Jordan, Damian, and Janelle Bethanie Godoy (collectively, "Sanchez Claimants"); and S. Guerra, individually and as guardian ad litem for Leonardo, David Leonardo Hernandez-Guerra, Nahomy Alexandra Guerra Lara, and Ashley Dayana Villamil Guerra (collectively, "Guerra Claimants"), together with other named Plaintiffs (collectively, "Plaintiffs") filed their operative complaint against Defendant Crystal Plus, LLC ("Crystal Plus") ("Defendant") on June 11, 2024, for (1) breach of implied warranty of habitability, (2) tortious breach of implied warranty of habitability, (3)

negligence, (4) intentional infliction of emotional distress, (5) private nuisance, (6) violation of Civil Code §1942.4, (7) violation of LAMC §45.33, and (8) violation of Business & Professions Code §17200 for issues at an apartments located at 7621 S. Broadway and 7617 S.

Broadway (collectively, "Property"), owned and managed by Defendant, where Plaintiffs were tenants.

(Complaint ¶¶1-7.) Pursuant to the instant petitions, Defendant has agreed to pay Plaintiffs to settle the claims.

(Petitions ¶¶10, 11.)

A settlement was reached pursuant to which Defendant agreed to pay a total of \$1,500,000.00. (Decl. of

Shakhnis ¶4, Exh. C.) Ashley and

Leonardo will receive gross sums of \$45,000.00 each, and Johnny, Hailey,

Jonathan David, Jordan, and Damian will receive gross sums of \$50,000.00 each. (Decl. of Shakhnis ¶4, Exh. B.) The total amount of attorney's fees for which

court approval is requested is at a rate of 35% each (\$15,750.00). (Decl. of Shakhnis ¶4, Exh. B.) The total amount of costs requested varies by

minor: Ashley (\$1,919.89), Leonardo (\$1,919.89), Johnny (\$2,133.21), Hailey

(\$2,133.21), Jonathan David (\$2,133.21), Jordan (\$2,133.21), and Damian (\$2,133.21). (Petitions ¶13; Decl. of Shakhnis ¶4, Exhs. B, D.) The net balance of proceeds for Ashley and

Leonardo are \$27,330.11 each, and Johnny, Hailey, Jonathan David, Jordan, and

Damian are \$30,366.79 each. (Petitions ¶¶15,

16(f).) All procedural requirements have

been met, as Petitioners have completed a Judicial Council form MC-350 on

behalf of each minor claimant, signed by their respective Petitioner, as well

as Form MC-351 on the minor claimants' behalf.

II.

Legal Standard

Compromises of disputed claims brought by minors are governed in part by C.C.P. §372. The statute allows

a guardian ad litem to appear in court on behalf of a minor claimant and gives

the guardian ad litem the power to compromise the minor's claim "with the

approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise

must be verified by the petitioner and must contain a full disclosure of all

information that has any bearing upon the reasonableness of the compromise or

covenant. (CRC Rule 7.950.) CRC Rule 7.952(a) requires the attendance of

the petitioner and claimant at the hearing on the compromise of the claim

unless the court for good causes dispenses with their personal appearance.

“Neither section 372 nor the California Rules of Court (rules 7.950 & 7.952) contemplates a noticed motion and adversary hearing when court approval of a minor’s compromise is sought. Although we need not decide the question, it would appear that a petition to approve or disapprove a minor’s compromise may be decided by the superior court, ex parte, in chambers.” (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

CRC Rule 7.955(a) requires the Court to use “a reasonable fee standard” when approving and allowing the amount of attorneys’ fees payable from money to be paid for the benefit of a person with a disability and requires that the Court “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorney’s fee would be affected by later events.”

CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney’s fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

III.

Analysis

Petitioners C. Sanchez, M. Macias, S. Guerra, and C. Gonzalez seek court approval for a settlement under which minor claimants would each receive \$45,000.00-\$50,000.00. The amounts reflect payment amounts to each minor claimant after deduction of attorneys’ fees representing 35% of each minor claimant’s settlement and after deduction of costs in amounts specific to each minor claimant. (See Petitions ¶16(f).)

This is a habitability suit, in which minor claimants lived in uninhabitable conditions, including but not limited to living with cockroach and rodent infestations, property with widespread water leaks which led to chronic mold growth, and physically defective units, which caused injuries including headaches,

earaches, stuffy and runny nose, itchy/watery eyes, and shortness of breath. (Petitions ¶¶5-6; Complaint ¶13.) The minor claimants have recovered completely from these injuries with no permanent injuries. (Petitions ¶8.)

Petitioners' counsel, Philip Shakhnis, declares that the attorney fees requested are based on a contingency basis and attorneys' fees are contingent on a settlement or judgment. (Decl. of Shakhnis ¶13.) Shakhnis declares in the course of this litigation, his firm conducted numerous client meetings, site inspections, preparing for depositions, mediation sessions, and made court appearances. (Decl. of Shakhnis ¶28.) Shakhnis declares his firm propounded and responded to written discovery relative to each plaintiff client including the minor claimants, and his firm propounded written discovery on the defendants on behalf of his clients. (Decl. of Shakhnis ¶28.) Shakhnis declares his firm spent over 300 hours in this case since early 2024. (Decl. of Shakhnis ¶28.)

Petitions include a copy of the retainer agreements between Petitioners and their counsel that are included with English translations. (Decl. of Shakhnis ¶4, Exh. E.) The retainer agreement identifies the names of the individuals who signed the submitted retainer agreements on behalf of the minor clients. As such, the submitted copies of the written attorney fee arrangement agreements with minor claimants are sufficient and support the attorneys' fees request.

Petitioners request this Court order the disposition of the minor claimants' balance of the settlements be invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court. (Petitions ¶18(b)(3).) Petitioners select an annuity from Pacific Life Insurance Company, and the check to fund the minors' annuities are payable to Pacific Life & Annuity Services, Inc. (Petitions at Attachs. 18(b)(3).)

Given the age of the minor claimants, the Court will only require attendance at the hearing by the adult Petitioners to grant the petition. (CRC Rule 7.952.)

IV.

Conclusion

Based on the foregoing, the petitions to approve the minors' compromise are granted for Leonardo, Johnny, Hailey, Jonathan Daniel, Jordan, Damian, and Ashley. The Court orders the funds invested in a single-premium deferred annuity, subject to withdrawal only on authorization of the Court.

Petitions for minors David Leonardo Hernandez-Guerra, Nahomy Alexandra Guerra Lara, Ashley Dayana Villamil Guerra, Marie Cattaleya Diaz Gonzalez, Oliver Alexander Ceron Diaz, Franklin Noe Ceron Diaz, Amy Jayleen Villagran-Macias, Julian Emmanuel Villagran, and Janelle Bethanie Godoy are denied, without prejudice, on the basis that the minors' names are not correctly spelled on their respective petitions and orders.

Moving Party to give notice.

Dated: September ____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] Plaintiffs' counsel is admonished for failing to identify and correct the minors' correctly spelled names until September 1, 2026, after this Court had already advanced the petitions pursuant to an ex parte application. Identifying the incorrectly spelled names for the minors incurred a large and unnecessary waste of this Court's limited judicial resources. Plaintiffs' counsel's oversight only further delays the resolution of this case and further strains this Court's calendar.